

CASE SUMMARY

State (BSES YPL) v. Ravinder

SC No. 302/2023 | FIR No. 794/2021, PS Shastri Park | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	27 March 2026 (date of inspection / offence: 6 December 2021)
PARTIES	State (BSES Yamuna Power Ltd.) v. Ravinder S/o Bhagwat, R/o 12, 2nd Pusta, Old Village Usmanpur, Delhi
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Convicted under Section 135, Electricity Act, 2003. Civil liability on the theft bill (Rs. 1,73,901/-) settled and the settlement amount deposited during trial. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Ravinder dishonestly abstracted electricity at his unmetered ground-floor premises through a yellow wire joined to a two-core black wire hooked to BSES Pole No. YVR J081, the supply running a commercial wooden-work load, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether — the premises being let in part to a tenant who later vacated and became untraceable — the accused, as landlord present at the spot, discharged the onus cast by the third proviso to Section 135(1).

FACTS

On 6 December 2021 at about 6.54 a.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. S.M. Pareek (Sr. Manager) inspected the residential premises at H. No. 12, Ground Floor (Back Portion), Village Old Usmanpur, Delhi. No electricity meter was installed; supply was being drawn directly through a yellow wire joined with a two-core black wire connected from BSES Pole No. YVR J081. One Lokesh, present at the spot, disclosed that he was a tenant of the accused Ravinder, who was also present. The connected load was 2.435 KW, used for commercial purposes (wooden work). Sh. Vinod videographed the proceedings; an Inspection Report, Load Report, Seizure Memo and Advisory Notice were prepared at the spot. The company assessed a theft demand of Rs. 1,73,901/-, which went unpaid, and on its Authorised Officer's complaint FIR No. 794/2021 was registered.

Investigation (ASI Atul Singh) confirmed that Ravinder was the landlord of the inspected premises; the tenant Lokesh vacated after the inspection and went to an unknown place. A charge-sheet was filed against Ravinder, and notice

under Section 251 Cr.P.C. was given on 7 March 2024, to which he pleaded not guilty. The prosecution examined three witnesses: PW-1 ASI Atul Singh (IO; proved the FIR, site plan, Section 41A and Section 91 Cr.P.C. notices, neighbours' statements, the accused's investigation statement and Pabandinama); PW-2 S.M. Pareek (inspection team head; proved the videography CD, inspection report, load report, seizure memo, advisory notice, theft bill and complaint, and identified the seized half-metre black wire, Ex.P1); and PW-3 Vinod (videographer, who proved the video and a Section 65B certificate, Ex.PW3/A). Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication, leading no defence evidence. His counsel stated that the theft bill had been settled and the settlement amount deposited with the company.

REASONING OF THE COURT

HEADNOTE

A landlord present at his unmetered premises when an illegal pole tap is running answers for the theft as consumer and user; the tenant's subsequent flight does not derail the prosecution. With a Section 65B certificate on record, the videography stands proved, and unrebutted official testimony plus the compulsory presumption in the third proviso to Section 135(1) sustain conviction; the accused's settlement and deposit of the theft bill corroborates guilt rather than closing the case.

Section 135(1)(a) was engaged by the pole-to-premises hook. The Court identified the operative ingredients — a dishonest tapping of, or connection with, a licensee's lines so as to abstract, consume or use electricity, punishable with imprisonment up to three years, fine or both — importing the Section 24 IPC definition of “dishonestly.” The allegation of hooking wires from BSES Pole No. YVR J081 to unmetered premises brought the case within clause (a), and under the third proviso the presumption of dishonest use arose on proof of the artificial means.

The inspection stood proved through unshaken, 65B-supported evidence. PW-2 (Sr. Manager) and PW-3 (videographer), the inspection team's prime witnesses, deposed consistently to the absence of any meter, the wire from the pole, the 2.435 KW commercial (wooden-work) load and the seizure of the half-metre wire identified in court; the videography was proved with a Section 65B certificate (Ex.PW3/A). Cross-examination elicited only that the raid was pre-planned — an answer that admitted the inspection itself — and the bare suggestions that the wire was planted or the documents fabricated were denied and left unsubstantiated.

The landlord present at the spot was rightly prosecuted despite the tenant's presence. Investigation established Ravinder as landlord of the premises; he was present at the inspection alongside the tenant Lokesh, who vacated soon after and became untraceable. The accused never showed that the load was the tenant's alone or ran through any authorised meter; with the premises unmetered and the load undisputed, liability fastened on the landlord-occupant found at the running tap.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested in cross-examination.

The presumption was compulsory, and settlement of the bill fortified the case. Following *Neeraj Dutt* (“shall presume” is compulsory) and *Hiten P. Dalal* (prudent-man rebuttal standard), the Court noted the accused led no defence evidence, claimed no Genset, and never produced paid bills — the natural rebuttal under *Mukesh Rastogi* and

Section 106 of the Evidence Act. His settlement and deposit of the Rs. 1,73,901/- bill, rather than protest against a false claim, corroborated the theft. The presumption stood un rebutted.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises through wires hooked to the licensee’s pole as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 1,73,901/- assessment measured the theft and required no separate proof as an ingredient.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises at the time of inspection and that Ravinder was found indulging in direct theft of electricity through illegal wires — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, he failed to rebut the statutory presumption. Ravinder is accordingly **convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

A landlord-liability variation on the direct-hooking template, with a commercial load and a vanished tenant. Five propositions stand out:

- **A landlord present at the tap answers for it.** Where the premises are unmetered and the landlord is found at the spot with the theft running, the tenant’s later disappearance does not shift or dilute liability.
- **Commercial use multiplies the stakes.** The 2.435 KW wooden-work load produced a Rs. 1,73,901/- assessment — roughly triple the typical domestic-use bills in companion cases — because assessment follows the applicable

(commercial) tariff, doubled under Regulation 63.

- **A filed 65B certificate forecloses the videography challenge.** With Ex.PW3/A on record, the defence's fabrication suggestion had nothing to bite on.
- **"Planted evidence" suggestions need material.** Bare suggestions that the wire was planted, denied by the witness, cannot dent the presumption of regularity attaching to official inspection reports (*Ashwani Kumar*).
- **Settlement plus deposit still corroborates guilt.** Even full payment of the settled bill was treated not as closure but as conduct inconsistent with innocence on the criminal charge.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	"Shall presume" denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.